

Minimum Resale Price Maintenance Can Reduce Prices

Jacob Burgdorf*, Michael Sacks†

January 30, 2026

Abstract

Theories suggesting that minimum resale price maintenance (RPM) are pro-competitive typically rely on inducing costly investments by downstream firms that are valued by consumers. We present a model in which minimum RPM can be implemented by an upstream monopolist with many downstream retailers that benefits consumers independent of the provision of complementary services or inventory effects. Minimum RPM disrupts coordination by downstream firms that sustains the monopoly price, leading to lower retail prices and higher retail quantities. Counter-intuitively, therefore, a binding minimum resale price can reduce retail prices, which increases consumer surplus and can also increase aggregate producer surplus.

*Expert Analysis Group, Antitrust Division, US Department of Justice, jacob.burgdorf@usdoj.gov

†David D. Reh School of Business, Clarkson University, Potsdam, New York 13699, msacks@clarkson.edu.

We are grateful for comments from seminar participants at Clarkson University. Casper Maxwebo and Holly Wagner provided excellent research assistance. The views expressed are not purported to reflect those of the U.S. Department of Justice.

1 Introduction

Theories on minimum resale price maintenance (RPM) predict minimum RPM may be used anti-competitively to facilitate collusion, exclude rivals, and raise prices to consumers (Jullien and Rey, 2007; Asker and Bar-Isaac, 2014; Hunold and Muthers, 2024; Dertwinkel-Kalt and Wey, 2024) or that minimum RPM may be used pro-competitively to induce costly activities from downstream firms. Pro-competitive effects arise via increased services (Telser, 1960; Scherer, 1983; Mathewson and Winter, 1998; Klein, 2009), reduced free-riding downstream (Klein and Murphy, 1988; Klein, 2014), or increased inventories (Deneckere et al., 1996, 1997).¹ In this paper, we propose a mechanism that does not rely on inducing costly activities downstream but can unambiguously increase consumer surplus and can also increase producer surplus. Counter-intuitively, we find that minimum RPM can be used to *uniformly lower* prices and increase output.²

We present a model where an upstream manufacturer sells a homogeneous product with linear pricing to retailers downstream who may collude at supra-competitive prices. By imposing a minimum resale price, the upstream manufacturer increases the continuation value to the downstream firms of not colluding, reducing the set of discount factors for which collusion is sustainable. We show for any discount factor that supports collusion, there exists a minimum resale price that will raise the continuation payoff sufficiently to prevent collusion. This decreases retailer profits, but increases manufacturer profits, consumer surplus, and total surplus. Further, models in which minimum RPM induces services downstream predict price increases. Average prices may be lower across uncertain demand states with minimum RPM if the policy induces retailers to hold more inventory as in Deneckere et al. (1996, 1997). Our model is counter-intuitive in that by imposing a minimum price at which downstream firms can resell the product, the equilibrium price decreases, and equilibrium quantities increase, with no changes in services or inventories. Chassang and Ortner (2019) find a similar outcome in a procurement auction setting, where the auctioneer can reduce collusion by guaranteeing a minimum price to the winning bid of the auction. Our results show that a similar mechanism can apply to vertical relations, as minimum resale prices in the presence of downstream collusion can result in lowering equilibrium prices.

There are alternative ways a manufacturer may prevent collusion from resulting in double marginalization, such as imposing a maximum retail price.³ Maximum RPM decreases the pay-off downstream firms receive from colluding directly and, if demand is known, can be set at the competitive retail level downstream. This would have the advantage of completely eliminating double marginalization, whereas our model shows a minimum price only partially reduces double marginalization. However, we posit that when downstream services, free-riding mitigation, or inventory holdings in the presence of uncertain demand may be important to manufacturers, minimum RPM could be preferred to maximum RPM, as maximum RPM addresses only double-marginalization, and may hinder costly downstream services, while minimum RPM may address both. The formal modeling of this choice is left for future research.

¹For reviews of the RPM literature, see Ippolito (1991), Elzinga and Mills (2008), Klein (2014), MacKay and Smith (2014), and MacKay and Smith (2017).

²Contemporaneous work by Baye et al. (2025) develops an alternative mechanism where minimum RPM can increase output and manufacturer profits absent costly activities, which benefits consumers loyal to specific retailers and harm those who are not.

³Maximum RPM has been subject to a rule of reason approach since the 1997 *Kahn* case, whereas minimum RPM has been subject to rule of reason only since the 2007 *Leegin* case.

2 Baseline Model

Time is discrete and indexed by t with an infinite horizon. Future payoffs are discounted by the common factor $\delta \in [0, 1)$. An upstream monopolist manufacturer u produces and sells a single product to $n > 1$ downstream Bertrand retailers $r = 1, \dots, n$ at common wholesale price w . The manufacturer's marginal cost of production is constant at $c > 0$. Each retailer faces no additional costs and sells the product to consumers at a price p_r . The product remains undifferentiated at the retail level, so consumers purchase only from the retailer with the lowest price. We assume that when multiple firms share the lowest price, they split the market evenly. Define $p = \min_r p_r$ as the lowest retail price and let $q = F(p)$ denote market demand for the product, which we assume to be continuous and that $(p - w)F(p)$ is strictly quasiconcave with a unique maximizer for all w . Though each p_r (and thus p) is a function of w we suppress this notation.

In each period, u first sets a wholesale price w . Then, after observing w , each r simultaneously and independently sets prices p_r . Consumers then purchase from the retailer(s) with the lowest price(s). As this game has an infinite horizon, retailers are free to employ dynamic (e.g., trigger) strategies. For simplicity, we consider two strategies: a static strategy (simultaneously and independently maximizing profits of the stage game) and the grim trigger strategy. Thus, we can view the stage game as a normal form game with two strategies: collude at the monopoly price $p^m = \arg \max_p \pi^m = \arg \max_p (p - w)F(p)$ or do not collude.

When colluding, retail profits are the monopoly profits equally split among the n retailers: $\frac{\pi^m}{n} = \frac{1}{n}(p^m - w)F(p^m)$. If any retailers deviate from the monopoly price in a given period, all retailers revert to the static-Nash equilibrium in every subsequent period and set $p_r = w$, so profits are 0 for all r . The deviation payoff from collusion by a single firm is $\pi^d = \lim_{\varepsilon \rightarrow 0} (p^m - \varepsilon - w) \times F(p^m - \varepsilon) = \pi^m$. Thus, retailers will set $p_r = p^m$ for all r if

$$\frac{\pi^m}{(1 - \delta)n} > \pi^m \implies \delta > \frac{n - 1}{n} \equiv \delta_0. \quad (1)$$

Henceforth, we assume $\delta > \delta_0$ so, in the baseline model, retailers set prices $p^m > w$. The manufacturer maximizes its profits $\pi_u = (w - c) \times F(p(w))$, setting wholesale price $w^* = \arg \max_w (w - c) \times F(p(w))$.

2.1 Minimum Resale Price

We now augment the model by allowing the manufacturer to choose both the wholesale price w and to set a contractual minimum resale price for all retailers $\underline{p}$.⁴ If $\underline{p} < w$, then the price is nonbinding so we assume that $\underline{p} \geq w$, where $\underline{p} = w$ is the equivalent of no minimum resale price. Suppose for the moment that $\underline{p} > w$. Let $\pi^{rpm} = (\underline{p} - w)F(\underline{p})$ denote aggregate retail profits when $p_r = \underline{p}$ for all r . Then, $p_r = p^m$ for all r only if

$$\frac{\pi^m}{(1 - \delta)n} > \pi^m + \frac{\delta}{(1 - \delta)n} \pi^{rpm} \implies \delta > \delta_0 \left(\frac{n\pi^m}{n\pi^m - \pi^{rpm}} \right) \equiv \delta_{\underline{p}}.^5 \quad (2)$$

⁴We assume that this contractual provision is observable and enforceable and do not model costly monitoring and enforcement; i.e., $\underline{p}$ is a binding minimum price.

⁵We ignore $\underline{p} > p^m$ as it is strictly dominated by $\underline{p} = p^m$.

Lemma 1. For any w and $\underline{p} \in [w, p^m]$, $\delta_0 \leq \delta_{\underline{p}} \leq 1$.

Proof. First, as $p^m \geq \underline{p}$, π^m is independent of $\underline{p}$. Second, as $\pi^{rpm} = (\underline{p} - w)F(\underline{p})$ is strictly increasing in $\underline{p}$ for all $\underline{p} < p^m$ (by the quasiconcavity of $(p - w)F(p)$), $\frac{n\pi^m}{n\pi^m - \pi^{rpm}}$ is monotonically increasing in $\underline{p}$. As $\underline{p} \rightarrow w$, $\pi^{rpm} \rightarrow 0$, so $\delta_{\underline{p}} \rightarrow \delta_0$. As $\underline{p} \rightarrow p^m$, $\pi^{rpm} \rightarrow \pi^m$, so $\frac{n\pi^m}{n\pi^m - \pi^{rpm}} \rightarrow \delta_0^{-1}$, which implies that $\delta_{\underline{p}} \rightarrow 1$. Thus, for all $\underline{p} \in [w, p^m]$, $\delta_0 \leq \delta_{\underline{p}} \leq 1$. $\square$

Lemma 2. For any w , the manufacturer's profit maximizing minimum resale price $\underline{p}^*(w)$ is the smallest $\underline{p}$ that satisfies $\delta_{\underline{p}} = \delta$.

Proof. Recall that $p = \min_r p_r$. For any w , $\pi_u = (w - c)F(p)$ is strictly decreasing in p for all $p > w$. Hence, u wants to set $\underline{p}$ to minimize $p - w$. For all $\delta > \delta_{\underline{p}}$, $p = p^m(w)$. As $\delta_{\underline{p}}$ is monotonically increasing in $\underline{p}$ (Lemma 1), the smallest $\underline{p}$ such that $p = \underline{p}$ is given by the $\underline{p}$ that leaves retailers indifferent between $p_r = p^m$ and $p_r = \underline{p}$, i.e., where $\delta_{\underline{p}} = \delta$. $\square$

Let $\underline{w}$ denote the manufacturer's profit maximizing wholesale price in the presence of a minimum resale price. Applying Lemmas 1 and 2 we can state the main result.

Theorem 1. For all demands $F(p)$ such that (i) $\underline{p}^*(w)$ satisfies the Lipschitz bound $|\underline{p}^*(w') - \underline{p}^*(w)| \leq \bar{b}|w' - w|$ for all w and w' and some $\bar{b} \geq 0$, (ii) $p^m(w^*) - \underline{p}^*(w^*) > \bar{b}|\underline{w} - w^*|$ for the same $\bar{b}$, $\underline{p}^*(\underline{w}) < p^m(w^*)$; that is, minimum RPM reduces retail prices.

Proof. Define $\Delta^* = p^m(w^*) - \underline{p}^*(w^*)$. For all $\delta < 1$, $p^m(w^*) > \underline{p}^*(w^*)$ by Lemmas 1 and 2, so $\Delta^* > 0$. By adding and subtracting $\underline{p}^*(w^*)$, we can rewrite $\underline{p}^*(\underline{w}) - p^m(w^*)$ as

$$\begin{aligned} \underline{p}^*(\underline{w}) - p^m(w^*) &= \underline{p}^*(\underline{w}) - p^m(w^*) + \underline{p}^*(w^*) - \underline{p}^*(w^*) \\ &= \underline{p}^*(\underline{w}) - \underline{p}^*(w^*) - (p^m(w^*) - \underline{p}^*(w^*)) \\ &= \underline{p}^*(\underline{w}) - \underline{p}^*(w^*) - \Delta^*. \end{aligned} \tag{3}$$

Combining the Lipschitz bound in (i) with (3) yields

$$\underline{p}^*(\underline{w}) - p^m(w^*) \leq \bar{b}|\underline{w} - w^*| - \Delta^*.$$

Condition (ii) then implies that $\bar{b}|\underline{w} - w^*| - \Delta^* < 0$, so $\underline{p}^*(\underline{w}) - p^m(w^*) < 0$. $\square$

Therefore, implementing a minimum resale price (i) does not significantly increase the wholesale price, (ii) increases both manufacturer profits and consumer surplus, and (iii) decreases the retail price and retail profits. The Lipschitz condition requires that the minimum RPM exhibits bounded pass-through with respect to revisions in the wholesale price ($w^* \rightarrow \underline{w}$). This holds for a wide class of smooth demands in which downstream prices respond proportionally (rather than explosively) to wholesale price changes, including linear, logit, and constant-elasticity demands.

Corollary 1. If, in addition to the conditions of Theorem 1, $(p - c)F(p)$ is strictly quasiconcave with a unique maximizer $\hat{p}$, then aggregate producer surplus is strictly higher in the presence of minimum RPM whenever $\hat{p} < \underline{p}^*(\underline{w})$. Otherwise, the effect on aggregate producer surplus is ambiguous.

Minimum RPM raises producer surplus if it moves the realized price closer to $\hat{p}$, and lowers it if it overshoots sufficiently far below $\hat{p}$.

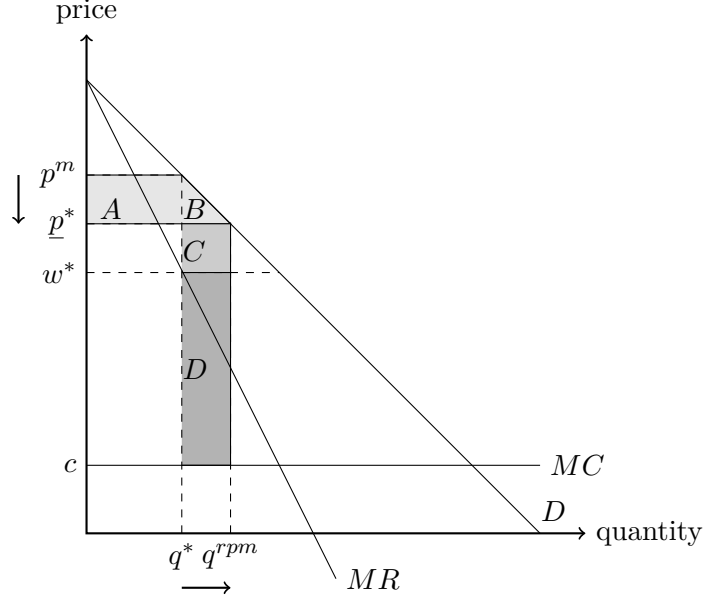


Figure 1: For simplicity, we fix $\underline{w} = w^*$ (which is true for linear demands $q = a - bp$ and constant-elasticity demands $q = ap^\varepsilon$). q^* corresponds to the quantity when there is no minimum resale price, where the associated retail price is the monopoly price $p^m(w^*)$ and q^{rpm} corresponds to the equilibrium quantity given a minimum resale price of $\underline{p}^*$. $A + B$ is the increase in consumer surplus from implementing the minimum resale price at $\underline{p}^*$. $C - A$ is the aggregate decrease retailer profits. D is the increase in manufacturer profits. $B + C + D$ is the decrease in deadweight loss.

3 Conclusion

This paper shows a surprising result: a minimum resale price can *lower* the price paid by all consumers in cases when downstream retailers can either explicitly or tacitly (e.g., via lowest price guarantees) keep prices above the competitive level. A minimum resale price increases the continuation value of deviating from the collusive price and can break this high price outcome, resulting in lower retail prices. A policy of a maximum resale price could obviously achieve the same at a lower price to consumers and increased profits to manufacturers, but the additional well-established benefits of a minimum resale price could imply minimum RPM is preferred when downstream services and inventories are sufficiently valued.

Lastly, it merits mention that the result is not unique to a monopolist manufacturer. The general result can extend to competition at both the downstream and upstream levels provided that the upstream manufacturers are sufficiently forward looking so that they prefer to maintain an agreement with a minimum resale price at $\underline{p}^*$ rather than undercutting each other with lower minimum prices or no minimum RPM.

References

Asker, John and Heski Bar-Isaac, “Raising retailers’ profits: On vertical practices and the exclusion of rivals,” *American Economic Review*, 2014, 104 (2), 672–686.

- Baye, Michael R., Dan Kovenock, and Casper de Vries**, “Minimum resale price maintenance in the absence of point-of-sale service, agency or free-rider problems,” *Working Paper*, October 2025.
- Chassang, Sylvain and Juan Ortner**, “Collusion in auctions with constrained bids: Theory and evidence from public procurement,” *Journal of Political Economy*, 2019, 127 (5), 2269–2300.
- Deneckere, Raymond, Howard P. Marvel, and James Peck**, “Demand uncertainty, inventories, and resale price maintenance,” *Quarterly Journal of Economics*, 1996, 111 (3), 885–913.
- , —, and —, “Demand uncertainty and price maintenance: Markdowns as destructive competition,” *American Economic Review*, 1997, 87 (4), 619–641.
- Dertwinkel-Kalt, Markus and Christian Wey**, “Resale price maintenance in a successive monopoly model,” *Journal of Industrial Economics*, 2024, 72 (2), 729–761.
- Elzinga, Kenneth G. and David E. Mills**, “The economics of resale price maintenance,” *Issues in Competition Law and Policy, ABA Section of Antitrust Law*, 2008.
- Hunold, Matthias and Johannes Muthers**, “Manufacturer collusion and resale price maintenance,” *Journal of Industrial Economics*, 2024, 72 (3), 1089–1113.
- Ippolito, Pauline M.**, “Resale price maintenance: Empirical evidence from litigation,” *Journal of Law and Economics*, 1991, 34 (2), 263–294.
- Jullien, Bruno and Patrick Rey**, “Resale price maintenance and collusion,” *RAND Journal of Economics*, 2007, 38 (4), 983–1001.
- Klein, Benjamin**, “Competitive resale price maintenance in the absence of free riding,” *Antitrust Law Journal*, 2009, 76 (2), 431–481.
- , “The evolving law and economics of resale price maintenance,” *Journal of Law and Economics*, 2014, 57 (S3), S161–S179.
- and **Kevin M. Murphy**, “Vertical restraints as contract enforcement mechanisms,” *Journal of Law and Economics*, 1988, 31 (2), 265–297.
- MacKay, Alexander and David Smith**, “The empirical effects of minimum resale price maintenance,” *Kilts Center for Marketing at Chicago Booth – Nielsen Dataset Paper Series 2-006*, 2014.
- and —, “Challenges for empirical research on RPM,” *Review of Industrial Organization*, 2017, 50 (2), 209–220.
- Mathewson, Frank and Ralph Winter**, “The law and economics of resale price maintenance,” *Review of Industrial Organization*, 1998, 13 (1), 57–84.
- Scherer, F.M.**, “The economics of vertical restraints,” *Antitrust Law Journal*, 1983, 52 (3), 687–718.
- Telser, Lester G.**, “Why should manufacturers want fair trade?,” *Journal of Law and Economics*, 1960, 3, 86–105.